

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Part 1	PRINCIPLES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title I	PRINCIPLES AND GENERAL PROVISIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title I, Chapter I	SCOPE, PURPOSES AND SUPERVISORY AUTHORITY	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 1	Scope	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 1(1)	N/A	Personal data shall be processed in accordance with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27 April 2016, hereinafter the 'Regulation', and with this Code, by respecting human dignity and the rights and fundamental freedoms of the individual.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
Article 2	Purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2(1)	N/A	This Code lays down the provisions to adapt the national legal system to the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-a	Supervisory Authority	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-a(1)	N/A	The supervisory authority referred to in Article 51 of the Regulation shall be the Garante per la protezione dei dati personali, hereinafter the 'Garante', as per Section 153 hereof.	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title I, Chapter II	PRINCIPLES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b	Legal basis to process personal data for the performance of a task carried out in the public interest or in the exercise of official authority	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b(1)	N/A	The legal basis mentioned in Article 6(3), letter b), of the Regulation shall be a law or a regulation or an administrative instrument of a general nature. December 2021.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b(1-a)	N/A	Without prejudice to any other obligations as laid down by the Regulation and/or this Code, personal data may be processed by a public administration referred to in Section 1(2) of legislative decree No 165 of 30 March 2001 – including the independent administrative authorities and the administrative bodies listed in Section 1(3) of Law No 196 of 31 December 2009 – as well as by a State-owned company or a company managing public services owned by a local authority as referred to in legislative decree No 175 of 19 August 2016, whereby processing related to activities performed on unregulated markets shall be excluded as for publicly owned companies, also where such processing is necessary to discharge a task carried out in the public interest or in the exercise of official authority conferred on the above entities. The provisions as per this paragraph shall be applied in compliance with Article 6 of the Regulation in order to ensure that their application will not be factually detrimental to the protection of the rights and freedoms of data subjects.2	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b(2)	N/A	Personal data other than those belonging to the special categories referred to in Article 9 of the Regulation or relating to criminal convictions and offences referred to in Article 10 of the Regulation may be communicated between controllers processing such personal data for the performance of a task carried out in the public interest or in the exercise of official authority if this is provided for in accordance with paragraph 1 hereof or if it is necessary in accordance with paragraph 1-a hereof.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b(3)	N/A	Personal data that are processed for the performance of a task carried out in the public interest or in the exercise of official authority may be disseminated or communicated to entities that are intending to process such data for other purposes exclusively if this is provided for in accordance with paragraph 1 hereof or if this is necessary in accordance with paragraph 1-a hereof. In the latter case, the Garante shall be notified at least ten days prior to commencement of the said communication or dissemination.4	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b(4)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-b(4)(b)	N/A	'Dissemination' shall mean disclosing personal data in whatever manner, including by making available or interrogating such data, to unidentified entities.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-c	Rules of Conduct	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-c(1)	N/A	In pursuance of the representativeness principle and taking account of the recommendations by the Council of Europe on the processing of personal data, the Garante shall promote the adoption of rules of conduct for the processing activities referred to in Article 6(1), letters c) and e), Article 9 and Chapter IX of the Regulation, verify that such rules are in compliance with the provisions in force by also evaluating the observations submitted by relevant stakeholders, and contribute to ensuring that such rules are disseminated and abided by.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-c(2)	N/A	A public consultation of at least 60-day duration shall be launched on the draft rules of conduct. Law No 205 of 3 December 2021. December 2021.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-c(3)	N/A	Upon closure of the consultation phase, the rules of conduct shall be approved by the Garante pursuant to Section 154-a, paragraph 1, letter b), published in the Official Journal of the Italian Republic, and included in Annex A to this Code by a decree of the Minister of Justice.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-c(4)	N/A	Compliance with the provisions set out in the rules of conduct referred to in paragraph 1 shall be a fundamental precondition for the processing of personal data to be lawful and fair.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-d	Child's Consent in Relation to Information Society Services	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-d(1)	N/A	Pursuant to Article 8(1) of the Regulation, a child aged above 14 years may give his or her consent to the processing of his or her personal data in relation to the offer of information society services directly to him or her. Regarding such services, the personal data of a child aged below 14 years may be processed lawfully in accordance with Article 6(1), letter a) of the Regulation if the consent is given by the holder of parental responsibility over the child.	Functional	Intersects With	Prohibition of Selling, Processing and/or Sharing Personal Data (PD)	PRI-03.3	Mechanisms exist to prevent the sale, processing and/or sharing of Personal Data (PD) when: (1) Instructed by the data subject; or (2) The data subject is a minor, where selling and/or sharing PD is legally prohibited.	5	
Article 2-d(2)	N/A	In relation to the offer of the services referred to in paragraph 1 directly to a child, the controller shall provide any information and communication relating to the processing activities concerning that child by using clear and plain language, in an especially concise, exhaustive, easily accessible and intelligible form, so as to make the child's consent meaningful.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	

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Article 2-e	Processing of Special Categories of Personal Data That Is Necessary for Reasons of Substantial Public Interest	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-e(1)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-e(1)(g)	N/A	thereof shall be allowed if it is provided for in EU law or, as regards the national legal system, in a law, a regulation, or an administrative instrument of a general nature; such law, regulation or administrative instrument of a general nature shall specify what types of data may be processed, what processing activities may be performed and what substantial public interest reasons justify the processing along with the suitable, specific measures to safeguard the data subject's fundamental rights and interests. ⁵	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-e(1-a)	N/A	Personal data relating to health shall be processed, after removing directly identifying information, by the Ministry of Health, the Istituto Superiore di Sanità [Higher Institute for Health], the National Agency for regional healthcare services, the Italian Medicine Agency, the National Institute for the promotion of health in migrant populations and for the fight against poverty-related diseases, and by Regions, with regard to the individuals using the respective services, also by way of the interlinking at national level of the individual information systems of the National Health Service including Electronic Health Records (FSE), which shall serve purposes compatible with those underpinning the processing at issue, in accordance with the purposes officially pursued by each of the aforementioned entities as well as with the arrangements and for the purposes set out in a decree by the Minister of Health, under the terms of paragraph 1 hereof, subject to an opinion given by the Garante, pursuant to the provisions December 2021, made in the Regulation, this Code, the Digital Administration Code referred to in legislative decree No 82 of 7 March 2005, and the interoperability guidelines issued by the Agency for Digital Italy. ⁶	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-e(2)	N/A	Without prejudice to paragraph 1, a substantial public interest shall be considered to exist in relation to processing activities performed by entities that carry out tasks in the public interest or in the exercise of official authority in the following sectors: a. Access to administrative records and FOIA procedures; b. Keeping the registries and certificates of births, deaths and marriages, the census register of residents in Italy and Italian nationals residing abroad, and electoral registers, and issuance of identity, travel or change of identification data documents and records; c. Keeping public registries of movable or immovable property; d. Keeping the national register of the holders of driving licenses and the national register of vehicles; e. Citizenship, immigration, asylum, aliens or displaced persons, refugee status; f. Right to vote and be elected and exercise of other political rights, diplomatic or consular safeguards, documenting the institutional activities of public bodies with particular regard to the drawing up of minutes and reports of the activities of representatives' assemblies, committees and any other collegiate body or assembly; g. Exercising the mandate conferred on representation bodies including suspension or dissolution of such bodies and establishing grounds for ineligibility as a candidate, incompatibility with or disqualification, dismissal or suspension from public offices; h. Carrying out oversight, political guidance, parliamentary inquiry or parliamentary review tasks and enabling access to documents and records as provided for by law and the rules of procedure of the relevant bodies exclusively for purposes that are directly related to the discharge of the electoral mandate; i. Activities by public bodies intended to implement taxation and customs-related provisions, also by the agency of the respective licensees, including preventing and countering tax evasion ⁷ ; l. Supervisory and inspection activities; m. Granting, payment, modification and revocation of allowances, benefits, donations, other amounts and permissions; n. Awarding of honours and compensations; recognition of the legal	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-e(3)	N/A	As for genetic data, biometric data and data relating to health, processing shall be carried out in all cases pursuant to Section 2-f hereof.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f	Safeguards applying to the processing of genetic data, biometric data, and data relating to health	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(1)	N/A	Pursuant to Article 9(4) of the Regulation, genetic data, biometric data and data relating to health may be processed if one of the conditions mentioned in paragraph 2 of the said article is fulfilled and in compliance with the safeguards set out by the Garante in accordance with this Section.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Article 2-f(2)	N/A	The provision setting out the safeguards referred to in paragraph 1 shall be adopted at least every other year by taking account of the following: a. The guidelines, recommendations and best practices published by the European data protection board and the best practices concerning the processing of personal data; b. The scientific and technological developments in the sector addressed by the safeguards; c. The interest in the free movement of personal data in the EU.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(3)	N/A	The draft of the aforementioned provision shall be subjected to a public consultation for a period of at least sixty days.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(4)	N/A	The safeguards shall be adopted in compliance with Article 9(2) of the Regulation and also concern the precautions to be taken with regard to the following: a. Vehicle permit stickers and accesses to restricted access areas; b. Organisational and management issues in health care; c. Arrangements to directly inform data subjects of diagnoses and data relating to their health; d. Drug prescriptions.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(5)	N/A	The safeguards shall be adopted in respect of each category of personal data as per paragraph 1 by having regard to the specific purposes of the processing and may lay down, pursuant to paragraph 2, additional conditions to be fulfilled for the processing of the said data to be allowed. In particular, the safeguards in question shall set out the security measures including encryption and pseudonymisation techniques, minimisation measures, the specific arrangements to enable selective access to the data and provide information to data subjects, and such additional measures as may be necessary to safeguard data subjects' rights.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(6)	N/A	The safeguards concerning genetic data and the processing of data relating to health for prevention, diagnosis and treatment purposes as well as the safeguards referred to in paragraph 4, letters b) and c) above shall be adopted after hearing the Ministry of Health, which shall obtain, for that purpose, an opinion from the Consiglio Superiore di Sanità (Higher Council for Health Care). As regards genetic data, the safeguards may provide for relying on the data subject's consent as an additional measure to protect the data subject's rights in case a particular high risk exists, pursuant to Article 9(4) of the Regulation, or set out any additional specific precautions.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(7)	N/A	Biometric data may be used with regard to the procedures enabling physical or logical access to data by authorised entities, by having regard to the obligations mentioned in Article 32 of the Regulation, in accordance with personal data protection principles and providing the safeguards referred to in this Section are complied with.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-f(8)	N/A	The personal data mentioned in paragraph 1 may not be disseminated.	Functional	No Relationship	N/A	N/A	N/A	0	

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Article 2-g	Principles applying to the processing of data relating to criminal convictions and offences	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-g(1)	N/A	Subject to the provisions made in legislative decree No 51 of 18 May 2018, processing of personal data relating to criminal convictions and offences or related security measures as based on Article 6(1) of the Regulation that is not carried out under the control of official authority shall be allowed solely if it is authorised by a law or, where so provided for by law, by a regulation providing for appropriate safeguards for the rights and freedoms of data subjects, in accordance with Article 10 of the Regulation.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Article 2-g(2)	N/A	Failing the aforementioned provisions in laws or regulations, the data processing activities referred to in paragraph 1 and the safeguards mentioned therein shall be specified by a decree of the Minister of Justice to be adopted after hearing the Garante pursuant to Section 17(3) of Law No 400 of 23 August 1988.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-g(3)	N/A	Without prejudice to paragraphs 1 and 2 above, processing of data relating to criminal convictions and offences or related security measures shall be allowed if authorised by a law or, where so provided for by law, by a regulation concerning, in particular, a. Fulfilment of obligations and exercise of rights by the controller or data subject in connection with labour law or within the framework of employer-employee relations under the terms set out in laws, regulations and collective agreements and in pursuance of Article 9(2), letter b), and Article 88 of the Regulation; b. Fulfilment of the obligations set out in laws or regulations concerning mediation for the purpose of resolving civil and commercial disputes; c. Verification or establishment of the absence of criminal records, personal qualifications and disqualifications where so provided for by laws or regulations; d. Determination of liability for accidents or events relating to human life, and preventing, detecting or countering fraud or situations of factual risk to the appropriate performance of insurance activities under the terms set out in the relevant laws or regulations; e. Establishing, exercising or defending a legal claim; f. Exercising the right to access data and documents held by administrative bodies under the terms set out in the relevant laws or regulations; g. Carrying out investigations or researches or collecting information on behalf of third parties under the terms of Section 134 of the consolidated statute on public security; h. Fulfilment of obligations arising from laws regulating communications and notifications required to counter Mafia-type crime or aimed at preventing the commission of Mafia-type offences and other serious types of socially dangerous crime where so provided for by laws or regulations, or else with a view to submitting the documents required by law to participate in tenders; i. Establishing the moral qualifications required for participating in tenders pursuant to the applicable legislation; l. Implementation of the legislation concerning the legality rating of businesses pursuant to Section 5-b of Decree-law No 1 of 24 January 2012 as enacted, including	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-g(4)	N/A	Where the instruments referred to in paragraph 3 do not specify the appropriate safeguards for the rights and freedoms of data subjects, the safeguards in question shall be laid down in the decree mentioned in paragraph 2.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-g(5)	N/A	Where processing of the data mentioned in this Section is carried out under the control of official authority, the provisions of Section 2-e shall apply.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-g(6)	N/A	Processing of the data referred to in Article 10 of the Regulation as carried out in pursuance of memorandums of understanding to prevent and counter organised crime that are entered into with the Ministry of the Interior and/or local governmental offices ("prefettura") shall be authorised via the decree mentioned in paragraph 2. As regards such memorandums, the decree referred to in paragraph 2 shall specify the types of data processed, the data subjects, and the processing activities permitted as also related to updating and storage of the data; it shall also lay down the appropriate safeguards for the rights and freedoms of data subjects. The decree shall be adopted in agreement with the Ministry of the Interior with regard to the subject matters referred to in this paragraph.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-h	Processing activities regulated by the Presidency of the Republic, the Chamber of Deputies, the Senate of the Republic, the Constitutional Court	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-h(1)	N/A	The provisions contained in sections 2-e, 2-f and 2-g of this legislative decree lay down principles that are applicable, in accordance with the respective regulatory systems, to the processing of the personal data categories as per Articles 9(1) and 10 of the Regulation that is regulated by the Presidency of the Republic, the Chamber of Deputies, the Senate of the Republic and the Constitutional Court.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-i	Prohibition to use data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-i(1)	N/A	Any personal data that is processed in breach of the relevant provisions on the processing of personal data may not be used except as provided for in Section 160-a.	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title I, Chapter III	PROVISIONS ON THE RIGHTS OF DATA SUBJECTS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-l	Restrictions on the rights of data subjects	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-l(1)	N/A	The rights referred to in Articles 15 to 22 of the Regulation may not be exercised by making a request to the controller or lodging a complaint pursuant to Article 77 of the Regulation if the exercise of those rights may prove factually, effectively detrimental to any of the following: a. The interests safeguarded by anti-money laundering provisions; b. The interests safeguarded by the provisions aimed to support victims of extortion; c. The activities of parliamentary enquiry committees as set up pursuant to Article 82 of the Constitution; d. The activities carried out by a public body other than a profit-seeking organisation as expressly provided for by a law for purposes relating exclusively to monetary policies, the system of payments, the oversight over credit and financial brokers and markets, and the protection of market stability; e. The performance of investigations by defence counsel or the exercise of a legal claim; f. Confidentiality regarding the identity of whistleblowers pursuant to Law No 179 of 30 November 2017; f-a. Protected interests regarding taxation and the performance of activities aimed at preventing and countering tax evasion. 8	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-l(2)	N/A	In the cases referred to in paragraph 1, letter c), the provisions contained in parliamentary rules of procedures, laws or the instruments setting up the individual enquiry committee shall apply.	Functional	No Relationship	N/A	N/A	N/A	0	

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Article 2-l(3)	N/A	In the cases referred to in paragraph 1, letters a), b), d), e), f), and f-a), the rights as per the said paragraph shall be exercised in accordance with the laws or regulations applying to the individual sectors, which must contain at least measures aimed at regulating the matters mentioned in Article 23(2) of the Regulation. Exercise of the rights in question may be delayed, restricted or ruled out, in which case the data subject shall be informed of the relevant reasons without delay except where that may be prejudicial to the purpose of the restriction, for as long as and to the extent this is a necessary and proportionate measure by taking account of the fundamental rights and legitimate interests of the data subject in order to protect the interests mentioned in paragraph 1, letters a), b), d), e), f) and f-a). In that case, the rights of the data subject may be exercised also through the Garante in accordance with the arrangements set out in Section 160. Where this is so, the Garante shall inform the data subject that all the necessary verifications have been carried out or that a review has been carried out, and that the data subject has the right to judicial redress. The controller shall inform the data subject of the arrangements available as per this paragraph.9	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-m	Restrictions based on judicial grounds	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-m(1)	N/A	Further to Article 23(1), letter f), of the Regulation, the rights and obligations referred to in Articles 12 to 22 and 34 of the Regulation as related to the processing of personal data that is carried out on judicial grounds in connection with proceedings before judicial offices of all types and levels as well as before the Consiglio Superiore della Magistratura (Higher Judicial Council) and any other self-governance bodies of special judicial authorities or before the Ministry of Justice shall be regulated under the terms of and in accordance with the arrangements set out in the laws or regulations applicable to the said proceedings as well as in compliance with Article 23(2) of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-m(2)	N/A	Without prejudice to paragraph 1, exercise of the rights and fulfilment of the obligations referred to in Articles 12 to 22 and 34 of the Regulation may be delayed, restricted or ruled out, in which case the data subject shall be informed of the relevant reasons without delay except where that may be prejudicial to the purpose of the restriction, to the extent and for as long as this is a necessary and proportionate measure by taking account of the fundamental rights and legitimate interests of the data subject in order to protect independency of the judiciary and judicial proceedings.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-m(3)	N/A	Section 2-1, paragraph 3, third, fourth and fifth sentence shall apply.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-m(4)	N/A	For the purposes of this Section, processing activities on judicial grounds shall mean any processing of personal data that is related to the handling of cases and disputes at judicial level, the processing activities carried out with regard to the legal status and payment conditions applicable to the judiciary, and the processing activities that are carried out in connection with inspections concerning judicial offices. Judicial grounds do not include the standard management and administrative activities concerning staff, equipment or facilities providing this is not prejudicial to the confidentiality of instruments that are related directly to the handling of proceedings at judicial level.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-n	Rights concerning deceased persons	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-n(1)	N/A	The rights referred to in Articles 15 to 22 of the Regulation concerning the personal data of deceased persons may be exercised by any entity having a vested interest or acting to protect the data subject as the latter's agent, or else on household-related grounds deserving protection.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-n(2)	N/A	Exercise of the rights referred to in paragraph 1 shall not be allowed where so provided for in a law or if the data subject has banned such exercise expressly by means of a written statement submitted or communicated to the controller with regard to the direct offer of information society services.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-n(3)	N/A	The data subject's intention to ban exercise of the rights referred to in paragraph 1 must be unambiguous, specific, free and informed. The ban may apply to the exercise of some of the rights referred to in the said paragraph.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-n(4)	N/A	The data subject has the right to at any time revoke or amend the ban referred to in paragraphs 2 and 3.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-n(5)	N/A	The ban shall in no case result into detrimental effects to the exercise by third parties of property rights arising from the data subject's decease or of the right to defend a legal claim.	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title I, Chapter IV	PROVISIONS ON CONTROLLERS AND PROCESSORS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-o	Allocation of tasks and functions to designated entities	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-o(1)	N/A	The controller or processor may provide under their own responsibility and within the framework of the respective organisation that specific tasks and functions relating to the processing of personal data be allocated to expressly designated natural persons acting under the controller's or processor's authority.	Functional	Intersects With	Defined Roles & Responsibilities	HRS-03	Mechanisms exist to define cybersecurity roles & responsibilities for all personnel.	5	
Article 2-o(2)	N/A	The controller or processor shall set out the most appropriate arrangements to authorise the persons acting under their authority to process personal data.	Functional	Intersects With	Defined Roles & Responsibilities	HRS-03	Mechanisms exist to define cybersecurity roles & responsibilities for all personnel.	5	
Article 2-p	Processing entailing a high risk for the performance of a task carried out in the public interest	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-p(1)	N/A	[Repealed].10	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-q	Appointment of a data protection officer in connection with processing carried out by judicial authorities acting in their capacity as such	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-q(1)	N/A	A data protection officer shall also be appointed with regard to the processing of personal data that is carried out by judicial authorities acting in their capacity as such, pursuant to the provisions contained in Section 4 of Chapter IV of the Regulation.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
Article 2-r	National accreditation body	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 2-r(1)	N/A	The national accreditation body referred to in Article 43(1), letter b), of the Regulation shall be the single national accreditation body as set up in accordance with Regulation (EC) No 765/2008 of the European Parliament and of the Council of 9 July 2008, subject to the Garante's power to directly take up the exercise of the relevant functions following a resolution to be published in the Official Journal of the Italian Republic, also with regard to one or more than one type of processing, in case the single national accreditation body is seriously in breach of its duties.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 3	Data Minimisation Principle	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 4	Definitions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 5	Subject-Matter and Scope of Application	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 6	Regulations Applying to Processing Operations	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title II	RIGHTS OF DATA SUBJECTS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title III	GENERAL DATA PROCESSING RULES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title IV	ENTITIES PERFORMING PROCESSING	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title V	DATA AND SYSTEM SECURITY	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title VI	PERFORMANCE OF SPECIFIC TASKS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part 1, Title VII	CROSSBORDER DATA FLOWS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II	PROVISIONS APPLYING TO	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title 0.I	PROVISIONS ON THE LEGAL BASIS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 45-a	Legal basis	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 45-a(1)	N/A	The provisions contained in this part are laid down in pursuance of Article 6(2) and Article 23(1) of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title I	PROCESSING OPERATIONS IN THE JUDICIAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title I, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title I, Chapter II	CHILDREN	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 50	Reports or Images Concerning Underage Persons	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 50(1)	N/A	The prohibition to publish and disseminate, by any means whatsoever, reports or images allowing an underage person to be identified, which is referred to in Section 13 of Presidential Decree No 448 of 22 September 1988, shall also apply if an underage person is involved for whatever reason in judicial proceedings concerning non-criminal matters. Violation of the prohibition referred to herein shall be punished in pursuance of Section 684 of the Criminal Code.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title I, Chapter III	LEGAL INFORMATION SERVICES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 51	General Principles	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 51(1)	N/A	Without prejudice to procedural regulations on viewing and obtaining abstracts and copies of records and documents, the data identifying matters pending before judicial authorities at all levels and of all instances shall be made accessible to any entity interested therein also by means of electronic communications networks, including the institutional sites of said authorities on the Internet.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 51(2)	N/A	Judgments and other decisions of judicial authorities at all levels and of all instances that have been filed with the court's clerk's office shall be made accessible also by means of the information systems and institutional sites of said authorities on the Internet, in compliance with the precautions referred to in this Chapter.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52	Information Identifying Data Subjects	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(1)	N/A	Without prejudice to the provisions that regulate drawing up and contents of judgments and other measures by judicial authorities at all levels and of all instances, a data subject may request on legitimate grounds, by depositing the relevant application with either the court's clerk's office or the secretariat of the authority in charge of the proceeding, prior to finalisation of the latter, that said office or secretariat add a notice to the original text of the judgment or measure to the effect that the data subject's name and other identification data as reported in the judgment or measure must not be referred to if said judgment or measure are to be reproduced in whatever form.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(2)	N/A	The judicial authority issuing the judgment and/or taking the measure at issue shall decide on the request referred to in paragraph 1 by an order without further formalities. Said authority may order of its own motion that the notice as per paragraph 1 be added in order to protect data subjects' rights or dignity.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(3)	N/A	In the cases as per paragraphs 1 and 2, the court's clerk's office or secretariat shall add and undersign, also by stamping it, the following notice upon depositing the relevant judgment or measure, by also referring to this Section: "In case of disclosure, leave out name(s) and other identification data concerning ...".	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(4)	N/A	If judgments or other measures, or the corresponding headnotes, bearing the notice as per paragraph 2 are disclosed also by third parties, the data subject's name and other identification data shall be omitted.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(5)	N/A	Without prejudice to Section 734-bis of the Criminal Code as applying to victims of sexual violence, whoever discloses judgments or other measures by judicial authorities at all levels and of all instances shall be required to omit, in any case, name(s), other identification data and other information, also concerning third parties, that may allow detecting - directly or not - the identity of children or else of parties to proceedings concerning family law and civil status - irrespective of the absence of the notice referred to in paragraph 2.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(6)	N/A	The provisions of this Section shall also apply in case an award under Section 825 of the Civil Procedure Code is filed. A party may lodge the request as per paragraph 1 with the arbitrators prior to issuing of the relevant award, and the arbitrators shall add the notice referred to in paragraph 3 to their award also in pursuance of paragraph 2. The arbitration panel set up at the Arbitration Chamber for Public Works under Section 209 of the Consolidated Statute on public procurement referred to in legislative decree No 50 of 18 April 2016 shall proceed accordingly in case a party lodges the relevant request.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 52(7)	N/A	Except for the cases referred to in this Section, the contents of judgments and other judicial measures may be disclosed in full in whatever form.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title II	PROCESSING OPERATIONS BY THE POLICE	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title II, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 53	repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 54	repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 55	repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 56	repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 57	Implementing Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title III	STATE DEFENCE AND SECURITY	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

NIST IR 8477-Based Set Theory Relationship Mapping (STRM)
Reference Document: Secure Controls Framework (SCF) version 2026.2

STRM Guidance: <https://securecontrolsframework.com/start-here/set-theory-relationship-mapping-strm/>
Focal Document: **Italy - Personal Data Protection Code (2018)**
Focal Document URL: <https://www.normattiva.it/uri-res/N2Ls?urn:nir:statoc:decreto.legislativo:2003-06-30;196>
Published STRM URL: <https://content.securecontrolsframework.com/strm/scf-strm-emea-ita-pdpc-2018.pdf>

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Part II, Title III, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 58	Processing of personal data for purposes of national security or defence	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 58(1)	N/A	Processing of personal data that is carried out by the entities referred to in Sections 4, 6 and 7 of Law No 124 of 3 August 2007 in pursuance of Section 26 of the said Law or else of other laws or regulations or of provisions set out in administrative instruments of a general nature ¹³ , and processing that concerns data placed under State secrecy rules pursuant to Section 39 and ff. of the said law shall be regulated in accordance with Section 160(4) hereof as well as with Sections 2, 3, 8, 15, 16, 18, 25, 37, 41, 42, and 43 of legislative decree No 51 of 18 May 2018 where compatible.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 58(2)	N/A	Without prejudice to paragraph 1, processing that is carried out by public bodies for purposes of defence or State security in pursuance of provisions set out in laws, regulations or administrative instruments of a general nature that envisage such processing specifically shall be regulated by paragraph 1 hereof as well as by Sections 23 and 24 of legislative decree No 51 of 18 May 2018.14 3.The implementing arrangements relating to paragraphs 1 and 2 shall be laid down in one or multiple regulations with regard to the types of data, data subjects, processing activities and persons authorised to process the personal data under the authority of the controller or processor pursuant to Section 2-o, including the relevant updating and storage mechanisms. The regulations applying to the subject matters under paragraph 1 shall be adopted in accordance with Section 43 of Law No 124 of 3 August 2007, and the regulations applying to the subject matters under paragraph 2 shall be adopted by way of a decree of the Prime Minister in accordance with Section 17(3) of Law No 400 of 23 August 1988, upon a proposal submitted by the competent Ministers. 4.The measures implementing this decree as related to the discharge of defence and national security functions by the armed forces shall be set out in one or more than one regulations adopted by a decree of the President of the Republic upon a proposal submitted by the Minister of defence. 3 December 2021. 3 December 2021.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IV	PROCESSING OPERATIONS IN THE PUBLIC	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IV, Chapter I	ACCESS TO ADMINISTRATIVE RECORDS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 59	Access to Administrative Records and FOIA-type access	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 59(1)	N/A	Subject to the provisions made in Section 60, prerequisites for, mechanisms of, and limitations on exercise of the right to access administrative records containing personal data, and the relevant judicial remedies shall be regulated further by Law No 241 of 7 August 1990 as subsequently amended and by the other laws concerning this subject-matter, as well as by the relevant implementing regulations, also with regard to the categories of data referred to in Articles 9 and 10 of the Regulation and the processing operations that may be performed to comply with a request for access.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 59(1-a)	N/A	The preconditions, arrangements and restrictions applying to exercise of FOIA-type access shall be regulated further by legislative decree No 33 of 14 March 2013.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 60	Data relating to health, sex life or sexual orientation	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 60(1)	N/A	Where the processing concerns data disclosing health or sex life, it shall be allowed if the legal claim to be defended by means of the request for accessing administrative records is at least equal in rank to the data subject's rights, or else if it consists in a personal right or another fundamental, inalienable right or freedom.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IV, Chapter II	PUBLIC REGISTERS AND PROFESSIONAL REGISTERS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 61	Use of Public Information and Rules of Conduct	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 61(1)	N/A	The Garante shall encourage adoption, pursuant to Section 2-c, of rules of conduct for processing personal data from archives, registers, lists, records or documents held by public bodies, by also specifying the cases in which the source of the data is to be mentioned and laying down suitable safeguards in connection with combining data from different archives, and by taking account of the relevant Council of Europe's Recommendations.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 61(2)	N/A	For the purposes of implementing this Code, personal data other than the data referred to in Articles 9 and 10 of the Regulation that are to be entered into a professional register pursuant to laws or regulations may be communicated to public and private bodies and disseminated pursuant to Section 2-b of this Code also by means of electronic communication networks. Reference may also be made to the existence of measures affecting the relevant professional practice on whatever grounds.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 61(3)	N/A	Upon the request of the member interested therein, the relevant professional board or society may supplement the information referred to in paragraph 2 by additional, relevant and not excessive data in connection with professional activities.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 61(4)	N/A	If the data subject so requests, the relevant professional board or society may also provide third parties with information or data concerning, in particular, professional qualifications that are not mentioned in the register, or else the availability to undertake tasks or the consent to receive scientific information materials also concerning meetings and workshops.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IV, Chapter III	REGISTERS OF BIRTHS, DEATHS AND MARRIAGES,	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IV, Chapter IV	PURPOSES IN THE SUBSTANTIAL PUBLIC INTEREST	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IV, Chapter V	SPECIFIC PERMITS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title V	PROCESSING OF PERSONAL DATA	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title V, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 75	Specific conditions applying to the health care sector	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 75(1)	N/A	Processing of personal data for the purpose of protecting the health and bodily integrity of the data subject, third parties or a community shall be carried out in accordance with Article 9(2), letters h) and i), and 9(3) of the Regulation and Article 2-f of this Code and by respecting the specific sector-related provisions.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 76	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Part II, Title V, Chapter II	SPECIFIC ARRANGEMENTS TO INFORM THE DATA	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 77	Specific arrangements	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 77(1)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 77(1)(a)	N/A	to inform the data subject in pursuance of Articles 13 and 14 of the Regulation;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Article 77(1)(b)	N/A	to process personal data.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Article 77(2)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 77(2)(a)	N/A	public and private health care organisations providing health care and welfare services and health care professionals;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 77(2)(b)	N/A	the public entities referred to in Section 80.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78	Information Provided by General Practitioners and Paediatricians	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(1)	N/A	General practitioners and paediatricians shall inform data subjects of the processing of personal data in a clear manner such as to allow the items referred to in Articles 13 and 14 of the Regulation to be easily understandable.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Article 78(2)	N/A	The information may be provided as regards the overall personal data processing operations that are required for diagnosis, assistance and treatment activities as carried out by a general practitioner or a paediatrician to safeguard the data subject's health or bodily integrity, such activities being performed at the data subject's request or else being known to the data subject in that they are carried out in his/her interest.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Article 78(3)	N/A	The information may also concern personal data collected from third parties and shall be given preferably in writing.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Article 78(4)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(4)(a)	N/A	temporarily replaces the general practitioner or paediatrician in question;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(4)(b)	N/A	provides specialised advice at the general practitioner's or paediatrician's request;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(4)(c)	N/A	may lawfully process the data within the framework of a professional partnership;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(4)(d)	N/A	supplies prescribed drugs; or	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(4)(e)	N/A	communicates personal data to the general practitioner or paediatrician in compliance with the applicable regulations.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(5)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(5)(a)	N/A	for scientific research purposes including clinical drug testing, in compliance with laws and regulations, by especially highlighting that the consent, where required, is given freely;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 78(5)(b)	N/A	within the framework of tele-aid or tele-medicine services;	Functional	No Relationship	N/A	N/A	N/A	0	

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Article 78(5)(c)	N/A	to supply other goods or services to the data subject via electronic communication networks; c- a) with a view to implementing the electronic health record referred to in Section 12 of decree-law No 179 of 18 October 2012 as enacted, including amendments thereof, by Law No 221 of 17 December 2012; or c- b) for the purposes of the monitoring systems and registries referred to in Section 12 of decree-law No 179 of 18 October 2012 as enacted, including amendments thereof, by Law No 221 of 17 December 2012.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 79	Information by public and private organisations providing health care and welfare services	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 79(1)	N/A	Public and private organisations providing health care and welfare services may avail themselves of the specific arrangements referred to in Section 78 with regard to a number of services provided also by different divisions and units within those organisations or in specified hospitals or local branches of such organisations.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 79(2)	N/A	In the cases referred to in paragraph 1, the organisation or its branches shall record the information provided in a unified manner so as to allow this circumstance to be verified by other divisions and units that may happen to process data concerning the same data subject also thereafter.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 79(3)	N/A	The specific arrangements referred to in Section 78 may be implemented in a homogeneous, consistent manner with regard to all the processing operations concerning personal data that are carried out by all the entities pertaining to a given health care agency.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 79(4)	N/A	Based on appropriate organisational measures in pursuance of paragraph 3, the specific arrangements in question may be applied to several data processing operations carried out both in the cases referred to in this Section and by the entities referred to in Section 80.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 80	Information Provided by Other Entities	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 80(1)	N/A	In addition to the provisions made in Section 79, the competent services or departments of public bodies other than those mentioned in the said Section 79 that deal with health care or social protection and welfare matters may avail themselves, in providing the information referred to in Articles 13 and 14 of the Regulation, of the possibility to provide a single information notice in connection with a number of processing operations performed for administrative purposes and at different times with regard to data collected from the data subject or from third parties.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 80(2)	N/A	The information as per paragraph 1 shall be supplemented by means of suitable, specific notices and signs, which shall be easily visible to the public, to be posted and disseminated also within the framework of institutional publications as well as on electronic communications networks with particular regard to administrative activities that are carried out for substantial public interest reasons and require no consent by data subjects.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 81	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 82	Emergency Situations and Protection of Health and Bodily Integrity	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 82(1)	N/A	The information referred to in Articles 13 and 14 of the Regulation may be given after the relevant service has been provided, without delay, in cases of medical emergency and/or related to public hygiene whenever the competent authority has issued a contingent emergency order pursuant to Section 117 of legislative decree No 112 of 31 March 1998.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 82(2)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 82(2)(a)	N/A	the data subject is physically impaired, legally incapable or unable to distinguish right and wrong, and the information cannot be provided, where so required, to the entity legally representing the data subject, a next of kin, a family member, a person cohabiting with the data subject or registered in a civil union with the latter, a trustee under the terms of Section 4 of Law No 219 of 22 December 2017 or, failing these, the manager of the institution where the data subject is hosted;	Functional	Intersects With	Authorized Agent	PRI-03.6	Mechanisms exist to allow data subjects to authorize another person or entity (e.g., authorized agent, proxy, etc.), acting on the data subject's behalf, to make Personal Data (PD) processing decisions.	5	
Article 82(2)(b)	N/A	there exists a serious, impending and irreparable risk to the data subject's health or bodily integrity.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 82(3)	N/A	The information as per paragraph 1 may also be given after the relevant service has been provided, without delay, if the provision of medical care may be affected - in terms of its timeliness or effectiveness - by the need to make available that information beforehand.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 82(4)	N/A	Once a person has become of age, the information shall be provided to the data subject if it had not been made available beforehand.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 83	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 84	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title V, Chapter III	PURPOSES IN THE SUBSTANTIAL PUBLIC INTEREST	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 86	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title V, Chapter IV	MEDICAL PRESCRIPTIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 88	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 89	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 89-a	Medical prescriptions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 89-a(1)	N/A	Regarding medical prescriptions, special precautions shall be taken by having regard to the provisions made by the Garante in the safeguards referred to in Section 2-f if there is no need to include the data subject's name, partly with a view to checking adequacy of the prescriptions or for administrative purposes or else for scientific research purposes in public health care.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title V, Chapter V	GENETIC DATA	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title V, Chapter VI	MISCELLANEOUS PROVISIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 91	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 92	Clinical Records	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 92(1)	N/A	Where public and private organisations providing health care or welfare services draw up and retain clinical records in compliance with the applicable legislation, suitable precautions shall be taken to ensure that the data are understandable as well as to keep the data concerning a patient separate from those concerning other data subjects – including the information related to unborn children.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 92(2)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 92(2)(a)	N/A	to exercise or defend a legal claim in pursuance of Article 9(2), letter f), of the Regulation, such claim being equal in rank to the data subject's right or else consisting in a personal right or another fundamental right or freedom, or	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 92(2)(b)	N/A	to establish a legally relevant claim in pursuance of the legislation concerning access to administrative records, such claim being equal in rank to the data subject's right or else consisting in a personal right or another fundamental right or freedom.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 93	Certificate of Attendance at Birth	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 93(1)	N/A	With a view to issuing a birth certificate, the certificate of attendance at birth shall be replaced by a declaration only containing the data that must be entered into the register of births. The provisions of Section 109 shall also apply.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 93(2)	N/A	The certificate of attendance at birth or clinical records, where containing personal data allowing identification of a mother that has objected to being named as per Section 30(1) of Presidential Decree No 396 of 3 November 2000, may be issued in full to any person interested therein, pursuant to law, after one hundred years have elapsed since the relevant document has been drawn up.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 93(3)	N/A	During the period referred to in paragraph 2, a request for accessing the certificate and/or clinical records may be granted with regard to the data concerning a mother that has objected to being named by taking suitable precautions to prevent the latter from being identifiable.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 94	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VI	EDUCATION	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VI, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 95	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 96	Processing of Data Concerning Students	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 96(1)	N/A	With a view to facilitating vocational orientation and training as well as occupational inclusion in Italy and abroad, the institutions comprised in the national education system, regional vocational training centres, unrecognised private schools and higher schools for art and performing arts and State universities along with private universities may communicate or disseminate, also to private entities and by electronic networks, on the data subjects' request, data on the evaluation and marks obtained by students (whether at mid-term or in the final term) and further personal data other than those referred to in Articles 9 and 10 of the Regulation, which must be relevant for the above purposes and referred to in the information provided to data subjects pursuant to Article 13 of the Regulation. The data may be processed further exclusively for the abovementioned purposes.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 96(2)	N/A	The provisions referred to in Section 2(2) of Presidential Decree No 249 of 24 June 1998 concerning protection of students' right to privacy as well as the provisions in force concerning publication of examination results by way of a notice to be posted on the school's bulletin board, and those concerning the granting of diplomas and certifications shall be left unprejudiced.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VII	PROCESSING FOR ARCHIVING PURPOSES IN THE	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VII, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 97	Scope of Application	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 97(1)	N/A	This Title shall regulate processing of personal data for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89 of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 98	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 99	Duration of Processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 99(1)	N/A	Processing of personal data for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes may be carried out also for longer than is necessary for achieving the individual purposes for which the data had been previously collected or processed.	Functional	Intersects With	Continued Use of Personal Data (PD)	PRI-03.9	Mechanisms exist to govern the continued use of Personal Data (PD) as it is collected, received, processed, stored, transmitted, shared and/or updated until: (1) Disposal of PD occurs when there is no longer a legitimate business purpose; (2) Disposal of PD occurs when the data retention timeline for the use case is met; and/or (3) Continued use of PD is prohibited upon withdrawal of data subject consent.	5	
Article 99(3)	N/A	Where the processing of personal data is terminated, for whatever reason, such data may be kept or transferred to another data controller for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in compliance with Article 89(1) of the Regulation.	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
Article 99(3)	N/A	Where the processing of personal data is terminated, for whatever reason, such data may be kept or transferred to another data controller for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in compliance with Article 89(1) of the Regulation.	Functional	Intersects With	Internal Use of Personal Data (PD) For Testing, Training and Research	PRI-05.1	Mechanisms exist to address the use of Personal Data (PD) for internal testing, training and research that: (1) Takes measures to limit or minimize the amount of PD used for internal testing, training and research purposes; and (2) Authorizes the use of PD when such information is required for internal testing, training and research.	5	
Article 100	Data Concerning Studies and Researches	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 100(1)	N/A	In order to encourage and support research and co-operation in the scientific and technological sectors, public bodies including universities and research institutions are empowered to decide that data concerning studies and researches, graduates, post-graduates, technicians and engineers, researchers, professors, experts and scholars be communicated and disseminated also to private bodies and by electronic networks – except for the data referred to in Articles 9 and 10 of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 100(2)	N/A	The data subject's rights of rectification, erasure, restriction and objection in pursuance of Articles 16, 17, 18 and 21 of the Regulation shall be left unprejudiced.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 100(3)	N/A	The data referred to in this Section shall not be regarded as administrative records under the terms of Law No 241 of 7 August 1990.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 100(4)	N/A	The data referred to in this Section may be processed further exclusively for the purposes for which they have been communicated or disseminated.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 100(4-a)	N/A	The rights referred to in paragraph 2 shall be exercised in accordance with the arrangements set out in the rules of conduct.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VII, Chapter II	PROCESSING FOR ARCHIVING PURPOSES IN THE PUBLIC	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 101	Processing Arrangements	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 101(1)	N/A	No personal data that has been collected for archiving purposes in the public interest or for historical research purposes may be used for taking measures or issuing provisions against the data subject in administrative matters, unless said data are also used for other purposes in compliance with Article 5 of the Regulation.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

NIST IR 8477-Based Set Theory Relationship Mapping (STRM)

Reference Document: Secure Controls Framework (SCF) version 2026.2

STRM Guidance: <https://securecontrolsframework.com/start-here/set-theory-relationship-mapping-strm/>

Focal Document: **Italy - Personal Data Protection Code (2018)**

Focal Document URL: <https://www.normattiva.it/uri-res/N2Ls?urn:nir:statuto:decreto.legislativo:2003-06-30;196>

Published STRM URL: <https://content.securecontrolsframework.com/strm/scf-strm-amea-ita-pdpc-2018.pdf>

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 101(2)	N/A	Any document containing personal data that is processed for archiving purposes in the public interest or for historical research purposes may only be used, by having regard to its nature, if it is relevant and indispensable for said purposes. Personal data that are disseminated may only be used for achieving the aforementioned purposes.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Article 101(3)	N/A	Personal data may be disseminated in any case if they relate to circumstances or events that have been made known either directly by the data subject or on account of the latter's public conduct.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Article 102	Rules of Conduct Applying to Processing for Archiving Purposes in the Public Interest or for Historical Research Purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 102(1)	N/A	The Garante shall encourage adoption of rules of conduct in pursuance of Section 2-c by the private and public entities, including scientific societies and professional associations, that are involved in processing data for archiving purposes in the public interest or historical research purposes.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 102(2)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 102(2)(a)	N/A	rules based on fairness and non-discrimination in respect of users, to be abided by also in communication and dissemination of data, pursuant to the provisions of this Code and the Regulation that are applicable to the processing of data for journalistic purposes or else for publication of papers, essays and other intellectual works also in terms of artistic expression;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 102(2)(b)	N/A	the specific safeguards applying to collection, access to and dissemination of documents concerning data disclosing health, sex life or confidential family-related matters; the cases shall be also specified where either the data subject or an interested party must be informed by the user of the planned dissemination; and arrangements to apply the provisions on processing of data for archiving purposes in the public interest or historical research purposes to private archives, as also related to harmonisation of access criteria and the precautions to be taken in respect of communication and dissemination.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 102(2)(c)	N/A		Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 103	Access to Documents Kept in Archives	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 103(1)	N/A	Access to documents kept in State archives, historical archives of public bodies and private archives that have been declared to be of especially substantial historical interest shall be regulated by legislative decree No 42 of 22 January 2004 and the relevant rules of conduct.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VII, Chapter III	PROCESSING FOR STATISTICAL PURPOSES OR	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 104	Scope of Application and Identification Data for Statistical Purposes or Scientific Research Purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 104(1)	N/A	The provisions of this Chapter shall apply to the processing of data for statistical purposes or, insofar as they are compatible, for scientific research purposes.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 104(2)	N/A	For the purpose of implementing this Chapter, account shall be taken with regard to identification data of all the means that can reasonably be used by a controller or others to identify the data subject, also on the basis of the knowledge acquired in connection with technological developments.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 105	Processing Arrangements	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 105(1)	N/A	No personal data that is processed for statistical purposes or scientific research purposes may be used for taking decisions or measures with regard to the data subject or else with a view to processing data for different purposes.	Functional	Intersects With	Internal Use of Personal Data (PD) For Testing, Training and Research	PRI-05.1	Mechanisms exist to address the use of Personal Data (PD) for internal testing, training and research that: (1) Takes measures to limit or minimize the amount of PD used for internal testing, training and research purposes; and (2) Authorizes the use of PD when such information is required for internal testing, training and research.	5	
Article 105(2)	N/A	Statistical or scientific research purposes shall have to be specified unambiguously and made known to the data subject in accordance with Articles 13 and 14 of the Regulation as also related to Section 106(2), letter b), of this Code and Section 6-a of legislative decree No 322 of 06.09.89 as subsequently amended.	Functional	Intersects With	Internal Use of Personal Data (PD) For Testing, Training and Research	PRI-05.1	Mechanisms exist to address the use of Personal Data (PD) for internal testing, training and research that: (1) Takes measures to limit or minimize the amount of PD used for internal testing, training and research purposes; and (2) Authorizes the use of PD when such information is required for internal testing, training and research.	5	
Article 105(3)	N/A	Where specific circumstances referred to in the rules of conduct as per Section 106 are such as to allow an entity to respond in the name and on behalf of another entity, being a family member of or co-habiting with the latter, the data subject may also be informed by the agency of the respondent.	Functional	Intersects With	Internal Use of Personal Data (PD) For Testing, Training and Research	PRI-05.1	Mechanisms exist to address the use of Personal Data (PD) for internal testing, training and research that: (1) Takes measures to limit or minimize the amount of PD used for internal testing, training and research purposes; and (2) Authorizes the use of PD when such information is required for internal testing, training and research.	5	
Article 105(4)	N/A	As for processing operations for statistical purposes or scientific research purposes concerning data collected for other purposes, no information shall have to be provided to data subjects if it entails a disproportionate effort compared with the right to be protected – on condition that those operations have been appropriately publicized as laid down in the rules of conduct referred to in	Functional	Intersects With	Internal Use of Personal Data (PD) For Testing, Training and Research	PRI-05.1	Mechanisms exist to address the use of Personal Data (PD) for internal testing, training and research that: (1) Takes measures to limit or minimize the amount of PD used for internal testing, training and research purposes; and (2) Authorizes the use of PD when such information is required for internal testing, training and research.	5	
Article 106	Rules of conduct for processing data for statistical purposes or scientific research purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 106(1)	N/A	The Garante shall encourage the adoption of rules of conduct in pursuance of Section 2-c by the private and public entities, including scientific societies and professional associations, that are involved in processing data for statistical purposes or scientific research purposes with a view to determining appropriate safeguards for the rights and freedoms of the data subject pursuant to Article 89 of the Regulation.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 106(2)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 106(2)(a)	N/A	the prerequisites and procedures to demonstrate and verify that the data are processed for appropriate statistical purposes or scientific research purposes, except as provided for in the aforementioned legislative decree No 322 of 06.09.89;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 106(2)(b)	N/A	where not provided for in this Code, further prerequisites for the processing and the respective safeguards as also related to the storage period, the information to be provided to data subjects in respect of the data collected also from third parties, communication and dissemination of the data, the selective criteria to be implemented in processing identification data, the specific security measures and the mechanisms to amend the data as a result of the exercise of data subjects' rights, by taking account of the principles laid down in the relevant Council of Europe's Recommendations;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 106(2)(c)	N/A	the means that can reasonably be used by controllers or others in order to identify a data subject whether directly or indirectly, by taking also account of the knowledge acquired in connection with technical developments;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	

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Article 106(2)(d)	N/A	the safeguards to be complied with if the data subject's consent is unnecessary, by having regard to the principles laid down in the Recommendations under letter b);	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 106(2)(e)	N/A	simplified arrangements for data subjects to give their consent in connection with processing of the data referred to in Article 9 of the Regulation;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 106(2)(f)	N/A	the cases where the rights under Articles 15, 16, 18 and 21 of the Regulation may be restricted in accordance with Article 89(2) of the Regulation;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 106(2)(g)	N/A	the fairness rules applying to collection of the data and the instructions to be addressed to the persons authorised to process the data under the authority of the controller or processor pursuant to Section 2-o ;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 106(2)(h)	N/A	the measures to be adopted in order to promote compliance with the data minimization principle and the technical and organisational measures referred to in Article 32 of the Regulation, by having also regard to the precautions intended to prevent access by natural persons who are not authorised or designated and the unauthorized identification of data subjects, to the interconnection of information systems also within the framework of the National Statistical System, and to the data exchanges for statistical or scientific research purposes that are carried out with entities and agencies abroad;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 106(2)(i)	N/A	the commitment by any person authorised to process personal data under the authority of the controller or processor pursuant to Section 2-o to abide by rules of conduct, where such persons are not bound by official or professional secrecy under the law, in order to ensure similar security and confidentiality levels.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 107	Processing of Special Categories of Personal Data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 107(1)	N/A	Without prejudice to Section 2-e and except for specific investigations or studies for statistical purposes or scientific research purposes that are provided for by law, the data subject's consent to process the data referred to in Article 9 of the Regulation may be given, where required, in accordance with simplified arrangements as set out in the rules of conduct referred to in Section 106 or in the measures referred to in Section 2-f.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 108	National Statistical System	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 108(1)	N/A	As well as being subject to the rules of conduct referred to in Section 106(2), processing of personal data by entities included in the National Statistical System shall be regulated further by legislative decree No 322 of 6 September 1989 with particular regard to processing of the data that are referred to in Article 9 of the Regulation and mentioned in the national statistical programme, provision of information to data subjects, exercise of data subjects' rights and the data falling outside the scope of statistical secrecy under Section 9(4) of the aforementioned decree.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 109	Statistical Data Concerning Births	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 109(1)	N/A	The collection of statistical data concerning births including malformed newborns and stillborns and the data flows also by healthcare managers shall be regulated by the technical specifications made by the National Statistics Institute after hearing the Minister of Health, the Minister of Justice and the Garante as well as by the provisions laid down in decree No 349 of 16 July 2001 by the Minister of Health.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 110	Medical, Biomedical and Epidemiological Research	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 110(1)	N/A	The data subject's consent shall not be required to process data relating to health for scientific research purposes in the medical, bio-medical or epidemiological sectors if the said research is carried out in accordance with laws or regulations or EU law pursuant to Article 9(2), letter i), of the Regulation, including research that is part of a bio-medical or health care research programme pursuant to Section 12-a of legislative decree No 502 of 30.12.92, and if a data protection impact assessment is carried out and published in accordance with Articles 35 and 36 of the Regulation. Additionally, consent shall not be necessary if informing the data subjects proves impossible or entails a disproportionate effort on specific grounds, or if it is likely to render impossible or seriously impair the achievement of the research purposes. In such cases, the controller shall take appropriate measures to protect the rights, freedoms and legitimate interests of the data subjects and the research programme shall be the subject of a reasoned, favourable opinion by the geographically competent ethics committee as well as being submitted to the Garante for prior consultation in accordance with Article 36 of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 110(2)	N/A	Where a data subject exercises his/her rights in pursuance of Article 16 of the Regulation with regard to the processing operations referred to in paragraph 1, any rectification or completion of the data shall be recorded without modifying the data if the rectified or completed data do not produce significant effects on the outcome of the research.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	5	
Article 110-a	Further processing of personal data by third parties for scientific research or statistical purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 110-a(1)	N/A	The Garante may authorise further processing of personal data, including the special categories of personal data referred to in Article 9 of the Regulation, for scientific research purposes or statistical purposes by third parties that carry out such activities to a prevailing extent if informing the data subjects proves impossible or entails a disproportionate effort on specific grounds, or if it is likely to render impossible or seriously impair the achievement of the research purposes. In such cases, the controller shall take appropriate measures to protect the rights, freedoms and legitimate interests of the data subjects in accordance with Article 89 of the Regulation including arrangements for the prior minimization and anonymization of the data.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 110-a(2)	N/A	The Garante shall communicate the decision adopted on the authorisation request within forty-five days; failing such communication, the request shall be considered to be rejected. When issuing the authorisation or thereafter following checks performed as appropriate, the Garante shall lay down the necessary conditions and measures to ensure adequate safeguards to protect data subjects in connection with the further processing of their personal data by third parties as also related to security issues.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 110-a(3)	N/A	Further processing of personal data by third parties for the purposes referred to in this Section may also be authorised by the Garante through decisions of general application to be adopted of its own motion as also related to specific categories of processing and controller. Those decisions shall set out the conditions for further processing and the necessary measures to ensure adequate safeguards to protect data subjects. The decisions adopted pursuant to this paragraph shall be published in the Official Journal of the Italian Republic.	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 110-a(4)	N/A	Processing for scientific purposes of the personal data collected in the course of clinical activities by public and private Istituti di ricovero e cura a carattere scientifico shall not be an instance of further processing by third parties on account of the instrumental nature of the health care activities carried out by such Istituti vis-à-vis research activities, subject to compliance with Article 89 of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VIII	PROCESSING ACTIVITIES IN EMPLOYER-EMPLOYEE RELATIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VIII, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 111	Rules of conduct for processing activities in employer-employee relations	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 111(1)	N/A	The Garante shall encourage adoption, pursuant to Section 2-c, of rules of conduct by public and private entities that are involved in processing personal data in employer-employee relationships for the purposes referred to in Article 88 of the Regulation, by also setting forth specific arrangements to inform data subjects.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 111-a	Information regarding received CVs	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 111-a(1)	N/A	If an uninvited CV is received with a view to possible recruitment, the information referred to in Article 13 of the Regulation shall be provided when the respective data subject is first contacted thereafter. Within the framework of the purposes referred to in Article 6(1), letter b), of the Regulation, no consent shall be required to process the personal data contained in the CV.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 112	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VIII, Chapter II	PROCESSING OF DATA CONCERNING WORKERS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 113	Data Collection and Relevance	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 113(1)	N/A	The provisions laid down in Section 8 of Law No 300 of 20 May 1970 and in Section 10 of legislative decree No 276 of 10 December 2003 shall be left unprejudiced.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title VIII, Chapter III	REMOTE SURVEILLANCE, SMART WORK AND TELEWORK	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 114	Safeguards in case of remote surveillance	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 114(1)	N/A	The provisions made in Section 4 of Law No 300 of 20 May 1970 shall be left unprejudiced.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 115	Home-based telework and smart working	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 115(1)	N/A	In the context of employer-employee relations as for home-based telework and smart working, employers shall be required to ensure that the employees' personality and moral freedom are respected.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Article 115(2)	N/A	Home-based workers shall be required to ensure confidentiality as necessary with regard to all family-related matters.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
Part II, Title VIII, Chapter IV	ASSISTANCE BOARDS AND WELFARE BODIES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 116	Availability of Data under the Terms Agreed upon with Data Subjects	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 116(1)	N/A	Assistance boards and welfare bodies may access the data banks of the entities providing the relevant services under the terms agreed upon with data subjects, in order to discharge their respective tasks, as regards the data categories that have been referred to specifically upon obtaining the data subjects' consent.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 116(2)	N/A	Guidelines for ad-hoc agreements to be made between assistance boards and welfare bodies and the entities providing the relevant services shall be set out in a decree by the Minister of Work and Social Policies.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IX	OTHER PROCESSING ACTIVITIES IN THE PUBLIC	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title IX, Chapter I	INSURANCE COMPANIES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 117	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 118	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 119	Repealed	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 120	Car Accidents	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 120(1)	N/A	The Istituti per la vigilanza sulle assicurazioni (ISVAP) [Supervisory Body for Private Insurance] shall lay down procedural and operational mechanisms applying to the car accidents data bank that was set up to prevent and fight fraud in connection with the compulsory insurance for motor vehicles registered in Italy; further, the arrangements for accessing the information collected in said data bank as regards judicial authorities and public administrative agencies that are competent over prevention of and fight against fraud in the compulsory insurance sector as well as limitations on and arrangements for access to said information by insurance companies shall be set out.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 120(2)	N/A	Personal data may be processed and communicated to the entities referred to in paragraph 1 in order to discharge the tasks referred to in said paragraph.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 120(3)	N/A	16 The provisions contained in Section 135 of the Private Insurance Code as per legislative decree No 209 of 7 September 2005 shall apply to any and all matters that are not regulated by this Section.	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title X	ELECTRONIC COMMUNICATIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title X, Chapter I	ELECTRONIC COMMUNICATIONS SERVICES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121	Services Concerned and Definitions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1)	N/A	This Title shall apply to the processing of personal data in connection with the provision of publicly accessible electronic communications services on public communications networks, including public communications networks supporting data collection and identification devices.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(a)	N/A	'electronic communication' shall mean any information exchanged or conveyed between a finite number of parties by means of a publicly available electronic communications service. This does not include any information conveyed as part of a broadcasting service to the public over an electronic communications network except to the extent that the information can be related to the identifiable or identified contracting party or user receiving the information;	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 121(1a)(b)	N/A	'call' means a connection established by means of a publicly available electronic communications service allowing two-way communication ¹⁸ ;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(c)	N/A	'electronic communications network' shall mean transmission systems and, where applicable, switching or routing equipment and other resources, including network elements which are not active, which permit the conveyance of signals by wire, radio, optical or by other electromagnetic means, including satellite networks, fixed (circuit- and packet-switched, including Internet) and mobile terrestrial networks, networks used for radio and television broadcasting, electricity cable systems, to the extent that they are used for the purpose of transmitting signals, and cable television networks, irrespective of the type of information conveyed ¹⁹ ;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(d)	N/A	'public communications network' shall mean an electronic communications network used wholly or mainly for the provision of publicly available electronic communications services which support the transfer of information between network termination points; ²⁰ September 2005; the amendment came into force as of 1 January 2006.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(e)	N/A	'electronic communications service' shall mean a service which consists wholly or mainly in the conveyance of signals on electronic communications networks, including telecommunications services and transmission services in networks used for broadcasting, to the extent that this is provided for in Article 2, letter c) of Directive 2202/21/EC of the European Parliament and of the Council of 7 March 2002;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(f)	N/A	'contracting party' shall mean any natural or legal person, body or association who or which is party to a contract with the provider of publicly available electronic communications services for the supply of such services, or is anyhow the recipient of such services by means of pre-paid cards;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(g)	N/A	'user' shall mean a natural person using a publicly available electronic communications service for private or business purposes, without necessarily being a contracting party to such service;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(h)	N/A	'traffic data' shall mean any data processed for the purpose of the conveyance of a communication on an electronic communications network or for the billing thereof;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(i)	N/A	'location data' shall mean any data processed in an electronic communications network or by an electronic communications service, indicating the geographic position of the terminal equipment of a user of a publicly available electronic communications service ²¹ ;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(l)	N/A	'value added service' shall mean any service which requires the processing of traffic data or location data other than traffic data beyond what is necessary for the transmission of a communication or the billing thereof;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 121(1a)(m)	N/A	'electronic mail' shall mean any text, voice, sound or image message sent over a public communications network, which can be stored in the network or in the recipient's terminal equipment until it is collected by the recipient.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 122	Information Collected with Regard to Contracting Parties or Users	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 122(1)	N/A	Storing information, or accessing information that is already stored, in the terminal equipment of a contracting party or user shall only be permitted on condition that the contracting party or user has given his consent after being informed in accordance with simplified arrangements. This shall be without prejudice to technical storage or access to stored information where they are aimed exclusively at carrying out the transmission of a communication on an electronic communications network, or insofar as this is strictly necessary to the provider of an information society service that has been explicitly requested by the contracting party or user to provide the said service. In order to determine the simplified arrangements referred to herein, the Garante shall also take account of the proposals put forward by the nationally most representative consumer and industry associations involved in order to also ensure that the mechanisms implemented make the contracting party or user actually aware. ²²	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
Article 122(2)	N/A	With a view to giving the consent referred to in paragraph 1 above, specific configurations of software or devices may be used that should be user-friendly as well as unambiguous vis-à-vis the contracting party or user.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 122(2-a)	N/A	Subject to the provisions made in paragraph 1 above, it shall be prohibited to use an electronic communications network in order to access information stored in the terminal equipment of a contracting party or user, store information, or monitor the operations performed by the user. ²⁴	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123	Traffic Data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123(1)	N/A	Traffic data relating to contracting parties and users that are processed by the provider of a public communications network or publicly available electronic communications service shall be erased or made anonymous when they are no longer necessary for the purpose of transmitting the electronic communication, subject to paragraphs 2, 3 and 5.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123(2)	N/A	Providers shall be allowed to process traffic data that are strictly necessary for contracting parties' billing and interconnection payments for a period not in excess of six months in order to provide evidence in case the bill is challenged or payment is to be pursued, subject to such additional retention as may be specifically necessary on account of a claim also lodged with judicial authorities.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123(3)	N/A	For the purpose of marketing electronic communications services or for the provision of value-added services, the provider of a publicly available electronic communications service may process the data referred to in paragraph 2 to the extent and for the duration necessary for such services or marketing, on condition that the contracting party or user to whom the data relate has given his/her prior consent. Such consent may be withdrawn at any time. ²⁵	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123(4)	N/A	In providing the information referred to in Articles 13 and 14 of the Regulation, the service provider shall inform a contracting party or user on the nature of the traffic data processed as well as on duration of the processing for the purposes referred to in paragraphs 2 and 3.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123(5)	N/A	Processing of traffic data shall be restricted to persons who are authorised to carry out the processing and act directly under the authority of the provider of a publicly available electronic communications service or, where applicable, the provider of a public communications network, in pursuance of Section 2-c, and who deal with billing or traffic management, customer enquiries, fraud detection, marketing of electronic communications or the provision of value-added services. Processing shall be restricted to what is absolutely necessary for the purposes of such activities and must allow identification of the authorised person accessing the data, also by means of automated search procedures.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 123(6)	N/A	The Authority for Communications Safeguards may obtain traffic and billing data that are necessary for settling disputes, particularly with regard to interconnection or billing matters.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 124	Itemised Billing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 124(1)	N/A	Contracting parties shall have the right to receive, upon request and free of charge, detailed proof of the items making up the bill, in particular concerning date and starting time of a conversation, selected numbers, type of numbering, place, duration and units charged for each conversation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 124(2)	N/A	The provider of a publicly available electronic communications service shall be required to enable users to perform communications and request services from any terminal equipment - free of charge and using simple means - by availing themselves of alternative payment methods, including anonymous methods, such as credit cards, debit cards or pre-paid cards.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 124(3)	N/A	The services and communications referred to in paragraph 2 and the communications required to implement alternative payment methods shall not be displayed in the documents sent to contracting parties concerning the communications performed.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 124(4)	N/A	The final three digits of the called numbers shall not be displayed in contracting parties' bills. A contracting party may request communication of the full numbers relating to the communications at stake for the sole purpose of specifically challenging either the accuracy of certain charges or charges relating to limited periods.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 124(5)	N/A	Having established that the methods referred to in paragraph 2 are actually available, the Garante may authorise the provider to report the full numbers in the bills.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125	Calling Line Identification	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125(1)	N/A	Where presentation of calling line identification is available, the provider of a publicly available electronic communications service shall ensure that the calling user has the possibility, free of charge and using simple means, to eliminate the presentation of calling line identification on a per-call basis. The calling contracting party must have the same possibility on a per-line basis. The provisions set out in Section 2(1) of Law No 5 of 11 January 2018 shall be left unprejudiced.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125(2)	N/A	Where presentation of calling line identification is available, the provider of a publicly available electronic communications service shall ensure that the called contracting party has the possibility, free of charge and using simple means, to prevent presentation of identification of incoming calls.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125(3)	N/A	Where presentation of calling line identification is available and such identification is presented prior to the call being established, the provider of a publicly available electronic communications service shall ensure that the called contracting party has the possibility, free of charge and using simple means, to reject incoming calls if the presentation of calling line identification has been eliminated by the calling user or contracting party.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125(4)	N/A	Where presentation of connected line identification is available, the provider of a publicly available electronic communications service shall ensure that the called contracting party has the possibility, free of charge and using simple means, to prevent the presentation of connected line identification to the calling user.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125(5)	N/A	Paragraph 1 shall also apply to calls to countries outside the European Union. Paragraphs 2 to 4 shall also apply with regard to calls originating in said countries.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 125(6)	N/A	Where presentation of calling or connected line identification is available, the provider of a publicly available electronic communications service shall inform contracting parties and users of the existence of such service as well as of the possibilities referred to in paragraphs 1, 2, 3 and 4.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 126	Location Data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 126(1)	N/A	Location data other than traffic data, relating to users or contracting parties of public communications networks or publicly available electronic communications services, may only be processed when they are made anonymous, or with the prior consent of the users or contracting parties, which may be withdrawn at any time, to the extent and for the duration necessary for the provision of a value-added service.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 126(2)	N/A	The service provider must inform the users or contracting parties, prior to obtaining their consent, of the type of location data other than traffic data which will be processed, of the purposes and duration of the processing and whether the data will be transmitted to a third party for the purpose of providing the value-added service.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 126(3)	N/A	Where consent of the users or contracting parties has been obtained for the processing of location data other than traffic data, the user or contracting party shall continue to have the possibility, using a simple means and free of charge, of requesting to temporarily refuse the processing of such data for each connection to the network or for each transmission of a communication.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 126(4)	N/A	Processing of location data other than traffic data in accordance with paragraphs 1, 2 and 3 shall be restricted to persons authorised to carry out the processing in pursuance of Section 2-o who act under the authority of the provider of the publicly available communications service or, as the case may be, the public communications network or of the third party providing the value-added service. Processing shall be restricted to what is necessary for the purposes of providing the value-added service and must ensure identification of the authorised persons accessing the data also by means of automated search operations.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
Article 127	Nuisance and Emergency Calls	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 127(1)	N/A	Any contracting party receiving nuisance calls may request that the provider of a public communications network or publicly available electronic communications service override, on a temporary basis, the elimination of the presentation of calling line identification and store the data concerning the origin of the incoming call. Overriding the elimination of the presentation of calling line identification may only be provided for in connection with the time ranges during which the nuisance calls take place and for no longer than fifteen days.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 127(2)	N/A	The request made in writing by the contracting party shall specify the manner in which the nuisance calls are received and, if it is preceded by a request made by phone, shall be forwarded within the following forty-eight hours.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 127(3)	N/A	The data stored pursuant to paragraph 1 may be communicated to a contracting party where the latter declares that he/she will only use them to protect himself/herself against nuisance calls. As for the services referred to in paragraph 1, the provider shall make available transparent procedures to contracting parties and may charge them amounts not exceeding the costs actually incurred.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 127(4)	N/A	The provider of a public communications network or publicly available electronic communications service shall set out transparent procedures in order to ensure that the services authorised to deal with emergency calls may override, on a per-line basis, the elimination of the presentation of calling line identification and, if necessary, process location data notwithstanding the temporary denial or absence of consent of the contracting party or user. Said services shall be specified in a decree issued by the Minister of Communications after seeking the opinion of the Garante and the Authority for Communications Safeguards.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 128	Automatic Call Forwarding	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 128(1)	N/A	The provider of a publicly available electronic communications service shall take the measures required to allow each contracting party, free of charge and using simple means, to stop automatic call forwarding by third parties to his/her own terminal.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 129	Directories of Contracting Parties	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 129(1)	N/A	The Garante shall determine, in co-operation with the Authority for Communications Safeguards as per Section 154(4) as well as in compliance with EU law, the arrangements for entering and subsequently using contracting parties' personal data in publicly available paper or electronic directories.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 129(2)	N/A	The determination referred to in Section 1 shall lay down appropriate mechanisms for contracting parties to give their consent to inclusion in said directories as well as to the use of their data for the purposes of sending advertising materials, direct selling, marketing surveys or marketing communications as well as for the purposes referred to in Article 21(2) of the Regulation, whereby the applicable principles shall consist in the highest possible simplification of the arrangements for inclusion in a directory that is only intended to allow searching the contact details of a contracting party for person-to-person communications, and in obtaining the contracting party's express, specific consent if the processing is carried out for purposes other than those mentioned above. Furthermore, the mechanisms for the contracting parties to access, rectify or erase their data free of charge shall also be set out.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130	Unsolicited Communications	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(1)	N/A	Without prejudice to the provisions made in sections 8 and 21 of legislative decree No 70 dated 9 April 2003, the use of automated calling or communications systems without human intervention for the purposes of direct marketing or sending advertising materials, or else for carrying out market surveys or interactive business communication shall only be allowed with the contracting party's or user's consent. ²⁶ The provisions made in Section 1(14) of Law No 5 of 11 January 2018 shall be left unprejudiced.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(2)	N/A	Paragraph 1 shall also apply to electronic communications performed by e-mail, facsimile, MMS-or SMS-type messages or other means for the purposes referred to therein.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(3)	N/A	Except as provided for in paragraphs 1 and 2, further communications for the purposes referred to therein as performed by different means shall be allowed in pursuance of Articles 6 and 7 of the Regulation as well as under the terms of paragraph 3-a below ²⁷ .	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(3-a)	N/A	By way of derogation from Section 129, processing by telephone and mail of the data referred to in paragraph 1 of the aforementioned Section for the purposes of sending advertising materials, direct selling, marketing surveys or marketing communications shall be allowed in respect of any entities that have not exercised their right to object, via simplified mechanisms including the use of electronic networks, by having the respective telephone numbers and other personal data as per Section 129(1) entered in a public opt-out register. ²⁸ [Amended by Section 6(2)a, item 6, of decree No 70 dated 13 May 2011]	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(3-b)	N/A	The register as per paragraph 3-a shall be set up by a decree of the President of the Republic to be adopted in pursuance of section 17(2) of Law No 400 dated 23 August 1988 following a resolution by the Council of Ministers, after obtaining the opinions of the Council of State and the competent Parliamentary Committees – to be rendered within thirty days of the respective requests – as well as the opinion of the Authority for Communications Safeguards with regard to the issues falling under the latter Authority's scope of competence – to be rendered within the same deadline. The following general standards and principles shall have to be followed: a. the register shall be set up with and managed by a public body and/or organization that has vested competences in this area; as converted with amendments into Law No 166 dated 20 November 2009. ²⁸ This paragraph along with paragraph 3-b and paragraph 3-c was added by Section 20-a, paragraph 1, letter b., of the decree No 135 dated 25 September 2009, as converted with amendments into Law No 166 dated 20 November 2009. For the sake of completeness, paragraphs 2 to 4 of Section 20-a of the aforementioned decree are reported below: "2. The register mentioned in Section 130(3-a) of the [Data Protection Code], as introduced by paragraph 1, letter b., of this section, shall be set up within six months as from the date of entry into force of [this] Law. Pending the said entry into force, the provisions adopted by the Italian data protection authority in pursuance of section 154 of the Data Protection Code, as subsequently amended, shall continue to be applicable in pursuance of section 129 thereof.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(3)	N/A	In section 44(1-a) of decree No 207 dated 30 December 2008 as converted, with amendments, into Law No 14 dated 27 February 2009, the words "until 31 December 2009" shall be replaced by the following: "until expiry of a six-month period following the date of entry into force of the Law converting decree No 135 dated 25 September 2009".	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(4)	N/A	In section 58 of the Consumer Code as per legislative decree No 206 dated 6 September 2005, paragraph 1 shall be replaced by the following: "1. Use by a professional of telephone, electronic mail, non-operator assisted automated calling systems, and/or facsimile shall require the consumer's prior consent - subject to the provisions contained in section 130(3-a) of the personal data protection Code (legislative decree No 196/2003) – as for processing of the data contained in publicly available subscriber directories." b. the body and/or organisation in charge for setting up and managing the register shall have to rely on the human resources and tools it holds at its disposal; alternatively, setting up and management of the register may be committed to third parties, which shall undertake to be liable for all the relevant financial and organisational charges, by way of a contract for the supply of services in accordance with the Code of Public Contracts referred to in legislative decree No 50 of 18 April	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 130(2016)	N/A	The entities resorting to the register in order to carry out their communications shall be charged an access tariff based on the actual operational and maintenance costs. The Ministry for Economic Development shall determine the said tariffs by an order; c. The technical arrangements applying to operation of the register shall be such as to enable every user to request that the respective number be entered in the register via simplified mechanisms including the use of electronic networks and/or the telephone; d. The technical arrangements applying to operation of and access to the register shall be such as to enable selective queries that should not allow transferring the data contained in the said register, whereby all the operations shall be logged and the access data shall be stored; e. The timeline and arrangements for entering and updating information in the register shall be set forth, whereby no distinction shall be drawn in terms of industry sector and/or type of commodity, and the maximum period shall be laid down during which the validated data contained in the register may be used; it shall be provided that the data are entered in the register for an indefinite amount of time and may be removed therefrom at any time via simple mechanisms and free of whatever charge; f. any entities processing data for the purposes of sending advertising materials, direct selling, marketing surveys or marketing communications shall be required to ensure presentation of calling line identification and provide the appropriate information to users, with particular regard to the possibility and arrangements to have their data entered in the register so as to object to being contacted in future; g. it shall be provided that inclusion in the register does not prevent processing of the data that have been acquired via other channels and are processed in compliance with Articles 6 and 7 of the Regulation.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(3-b)	N/A	Supervision and control over organisation and operation of the register as per paragraph 3-bis and the relevant data processing operations shall be committed to the Italian data protection authority.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(4)	N/A	Subject to paragraph 1, where a data controller uses, for direct marketing of his/her own products or services, electronic contact details for electronic mail supplied by a data subject in the context of the sale of a product or service, said data controller may fail to request the data subject's consent, on condition that the services are similar to those that have been the subject of the sale and the data subject, after being adequately informed, does not object to said use either initially or in connection with subsequent communications. The data subject shall be informed of the possibility to object to the processing at any time, using simple means and free of charge, both at the time of collecting the data and when sending any communications for the purposes referred to in this paragraph.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(5)	N/A	In any event, the practice of sending communications for the purposes referred to in paragraph 1 or anyhow for promotional purposes by disguising or concealing the identity of the sender, or in breach of section 8 of legislative decree No 70 dated 9 April 2003, or without a valid address to which the data subject may send a request to exercise the rights referred to in Articles 15 to 22 of the Regulation, or by encouraging recipients to visit websites that contravene the said section 8 of legislative decree No 70/2003, shall be prohibited.29	Functional	No Relationship	N/A	N/A	N/A	0	
Article 130(6)	N/A	In case of persistent breach of the provisions laid down in this Section, the Garante may also order the provider of electronic communications services, under Article 58 of the Regulation, to implement filtering procedures or other practicable measures with regard to the electronic contact details for electronic mail used for sending the communications.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 131	Information Provided to Contracting Parties and Users	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 131(1)	N/A	The provider of a publicly available electronic communications service shall inform contracting parties and, if possible, users concerning the existence of situations that allow the contents of communications or conversations to be unintentionally made known to persons who are not party to them.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 131(2)	N/A	Contracting parties shall inform users whenever the contents of communications or conversations may come to be known by others either because of the type of terminal equipment used or because of the connection established between such terminal equipment at the contracting parties' premises.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 131(3)	N/A	An user shall inform another user whenever, during a conversation, devices are used to enable said conversation to be heard by others.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132	Traffic Data Retention for Other Purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(1)	N/A	Without prejudice to Section 123(2), telephone traffic data shall be retained by the provider for twenty-four months as from the date of the communication with a view to detecting and suppressing criminal offences, whereas electronic communications traffic data, except for the contents of communications, shall be retained by the provider for twelve months as from the date of the communication with a view to the same purposes.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(1-a)	N/A	The data related to unsuccessful calls that are processed on a provisional basis by the providers of publicly available electronic communications services or a public communications network shall be retained for thirty days.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(2)	N/A	[Repealed.] 33 February 2004; Decree-Law No 144 of July 27, 2005 converted with amendments into Law No 155 of July 31, 2005 ("Urgent Measures to Fight Terrorism"), Decree-Law No 248/2007 converted with amendments into Law No 31/2008 dated 27 February 2008, Law No 48 dated 18 March 2008 ratifying the Council of Europe's Convention on Cybercrime of 23 November 2001, and Presidential Decree No 109 dated 30 May 2008 (implementing directive 2006/24/EC). 31 This paragraph was amended firstly by Section 6(3) of decree No 144/2005, and thereafter by Section 2 of legislative decree No 109/2008. schedule set forth in Section 6(3) thereof. paragraph 4-bis hereof..	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(3)	N/A	Within the retention period set out in the law, if there is enough circumstantial evidence of criminal offences that are punished under the law by life imprisonment or else by imprisonment for a maximum term of not less than three years as determined in accordance with Section 4 of the Criminal Procedure Code, or else of offences consisting in threats or harassment or causing private nuisance by means of the telephone, providing the threats, harassment or the nuisance are serious in nature, the data may be acquired subject to an authorisation granted by the judge with a reasoned order upon the request made by the public prosecutor or else by the defence counsel, the person under investigation, the injured party, or any other civil party, on condition the data are relevant to establish the facts at issue.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(3-a)	N/A	Where there is an urgent need to act and there is ground to believe that any delay may seriously undermine the investigations, the public prosecutor may provide for acquisition of the data with a reasoned order that shall be communicated immediately, and at all events by no later than forty-eight hours, to the judge that is competent for granting the relevant authorisation. The judge shall decide in the subsequent forty-eight hours whether to validate the said request with a reasoned order.35	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(3-b)	N/A	As regards the data that are retained for the purposes set out in paragraph 1, the rights referred to in Articles 12 to 22 of the Regulation may be exercised in accordance with the arrangements made in the third, fourth and fifth sentence of Section 2-m(3).36	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 132(3-c)	N/A	Any data that is acquired in breach of the provisions laid down in paragraphs 3 and 3-a hereof may not be used. ³⁷	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(4)	N/A	[Repealed.] ³⁸	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(4-a)	N/A	[Repealed.] ³⁹ 4-b. and/or IT matters from the State Police, the Carabinieri, and the Financial Police as well as the other entities mentioned in paragraph 1 of section 226 of the implementing, consolidating, and transitional provisions related to the Criminal Procedure Code as per legislative decree No 271/1989, where delegated by the Minister for Home Affairs, may order IT and/or Internet service providers and operators to retain and protect Internet traffic data, except for contents data, according to the arrangements specified above and for no longer than ninety days, also in connection with requests lodged by foreign investigating authorities, in order to carry out the pre-trial investigations referred to in the said section 226 of the provisions enacted via legislative decree No 271/1989, or else with a view to the detection and suppression of specific offences. The term referred to in the order in question may be extended, on grounds to be justified, up to six months whilst specific by Law No 178 of 23 November 2021. Law No 178 of 23 November 2021. Law No 178 of 23 November 2021. way of Law No 155 of 31 July 2005; it was subsequently repealed by Section 21(1)(c) of legislative decree No 109 of 30 May 2008. arrangements may be made for keeping the data as well as for ensuring that the data in question are not available to the IT and/or Internet service providers and operators and/or to third parties.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(4-c)	N/A	41Any IT and/or Internet service providers and/or operators that are the subject of the order mentioned in paragraph 4-b shall comply without delay and forthwith give assurances to the requesting authority as to their compliance. IT and/or Internet service providers and/or operators are required to keep the order at issue confidential along with any activities performed accordingly throughout the period specified by the said authority. Violation of this requirement shall be punished in accordance with section 326 of the Criminal code unless the facts at issue amount to a more serious offence.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(4-d)	N/A	42The measures taken under paragraph 4-b above shall be notified in writing without delay, in any case by forty-eight hours as from service on the addressee(s), to the public prosecutor that is competent for the place of enforcement, who shall endorse them if the relevant preconditions are fulfilled. The measures shall cease to be enforceable if they are not endorsed.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(5)	N/A	43 Data processing for the purposes referred to in paragraph 1 shall be carried out by complying with the measures and precautions to safeguard data subjects that shall be set out by the Garante by way of a decision of a general nature ⁴⁴ , which shall be aimed at ensuring that the retained data meet the same quality, security and protection requirements as are applicable to data on communication networks as well as at ⁴⁵ laying down technical arrangements to regularly destroy the data after expiry of the term referred to in paragraph 1.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132(5-a)	N/A	The provisions laid down in Section 24 of Law No 167 of 20 November 2017 shall be left unprejudiced. ⁴⁶	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-a	Procedures Set out by Providers	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-a(1)	N/A	Providers shall set out internal procedures to meet the requests made in compliance with the provisions that envisage access to users' personal data.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-a(2)	N/A	Upon request, providers shall provide the Garante, having regard to the respective scope of competence, with information on the procedures referred to in paragraph 1, the number of requests received, the legal justification invoked and their response. 205 of 3 December 2021. 'Section 24 - Retention periods applying to telephone and Internet traffic data. (1) In pursuance of Article 20 of Directive (EU) 2017/541 of the European Parliament and of the Council of 15 March 2017 on combating terrorism and replacing Council Framework Decision 2002/475/JHA, the retention period of telephone and Internet traffic data and of the data relating to unsuccessful calls referred to in Section 4-a(1) and (2) of decree-law No 7 of 18 February 2015 as enacted and amended by Law No 43 of 17 April 2015 shall be set at seventy-two months by way of derogation from Section 132(1) and (1-a) of the personal data protection code as per legislative decree No 196 of 30 June 2003 with a view to ensuring effective investigation instruments by having regard to the extraordinary requirements to combat terrorism, including international terrorism, for the purpose of detecting and suppressing the criminal offences referred to in Section 51(3-c) and in Section 407(2)(a) of the Criminal Procedure Code.' 47 This section was added by Section 1(8) of legislative decree No 69 dated 28 May 2012.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-b	Security of processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-b(1)	N/A	In accordance with Article 32 of the Regulation, providers of publicly available electronic communications services shall be subject to this Section.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-b(2)	N/A	Providers of publicly available electronic communications services shall take technical and organisational measures that are appropriate in the light of the existing risk under the terms of Article 32 of the Regulation; to that effect, they may rely on other entities that have been entrusted with providing the given service.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-b(3)	N/A	Any entity operating on electronic communications networks shall ensure that personal data are only accessible to authorised staff for legally permitted purposes.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-b(4)	N/A	The measures referred to in paragraphs 2 and 3 shall ensure the protection of traffic and location data and of any other personal data that is stored or transmitted against destruction, accidental or otherwise, loss or alteration, accidental or otherwise, and against unauthorised or unlawful storage, archiving, access or disclosure; such measures shall also ensure implementation of a security policy.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-b(5)	N/A	If security of the service or the personal data requires taking measures that concern the network, the provider of a publicly available electronic communications service shall take those measures jointly with the provider of the public communications network. Failing an agreement to that effect, the dispute shall be settled by the Authority for Communications Safeguards upon the request of either provider in accordance with the arrangements that are envisaged in the legislation in force.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 132-c	Information on risks	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

NIST IR 8477-Based Set Theory Relationship Mapping (STRM)

Reference Document: Secure Controls Framework (SCF) version 2026.2

STRM Guidance: <https://securecontrolsframework.com/start-here/set-theory-relationship-mapping-strm/>

Focal Document: **Italy - Personal Data Protection Code (2018)**

Focal Document URL: <https://www.normattiva.it/uri-res/N2Ls?urn:nir:statoc:decreto.legislativo:2003-06-30;196>

Published STRM URL: <https://content.securecontrolsframework.com/strm/scf-strm-emea-ita-pdpc-2018.pdf>

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
Article 132-c(1)	N/A	The provider of a publicly available electronic communications service shall inform subscribers and, where possible, users, using clear language that is appropriate and suitable by having regard to age and category of the data subject receiving such information and taking special care in case children are involved, whether there is a particular risk of network security breach; if that risk falls outside the scope of application of the measures the provider is required to take pursuant to Section 132-b, paragraphs 2, 3 and 5, the provider shall specify all the possible remedies and the expected costs. Similar information shall be provided to the Garante and the Authority for Communications Safeguards.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
Part II, Title X, Chapter II	INTERNET AND ELECTRONIC NETWORKS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title X, Chapter III	VIDEO SURVEILLANCE	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title XI	SELF-EMPLOYED PROFESSIONALS AND PRIVATE	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title XII	JOURNALISM, FREEDOM OF EXPRESSION AND	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part II, Title XII, Chapter I	IN GENERAL	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 136	Journalistic Purposes and Other Intellectual Works	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 136(1)	N/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 136(1)(a)	N/A	that are carried out in the exercise of the journalistic profession and for the sole purposes related thereto;	Functional	No Relationship	N/A	N/A	N/A	0	
Article 136(1)(b)	N/A	that are carried out by persons included either in the list of free-lance journalists or in the roll of trainee journalists as per Sections 26 and 33 of Law No 69 of 03.02.83; or	Functional	No Relationship	N/A	N/A	N/A	0	
Article 136(1)(c)	N/A	that are aimed exclusively at publishing or circulating, also occasionally, articles, essays and other intellectual works also in terms of academic, artistic or literary expression.	Functional	No Relationship	N/A	N/A	N/A	0	
Article 137	Applicable Provisions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Article 137(1)	N/A	With regard to the provisions made in Section 136, the data referred to in Articles 9 and 10 of the Regulation may be processed also without the data subject's consent providing the rules of co	Functional	No Relationship	N/A	N/A	N/A	0	
Part III	REMEDIES AND SANCTIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	Article-level entries omitted: the English translation PDF (registrodelleopposizioni.it, Dec 2021 consolidated text) was truncated before reaching Part III. Article numbers in Part III differ between the 2003 original and 2021 consolidated version (D.Lgs. 101/2018 amendments).
Part III, Title I	ADMINISTRATIVE AND JUDICIAL REMEDIES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title I, Chapter 0	MUTUALLY ALTERNATIVE MEANS OF REDRESS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title I, Chapter I	REMEDIES AVAILABLE TO DATA SUBJECTS BEFORE THE GARANTE	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title I, Chapter II	JUDICIAL REMEDIES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title II	INDEPENDENT SUPERVISORY AUTHORITY	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title II, Chapter I	THE GARANTE PER LA PROTEZIONE DEI DATI PERSONALI	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title II, Chapter II	THE BUREAU	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title II, Chapter III	INQUIRIES AND CONTROLS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title III	PENALTIES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title III, Chapter I	BREACH OF ADMINISTRATIVE RULES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title III, Chapter II	CRIMINAL OFFENCES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title IV	AMENDMENTS, REPEALS, TRANSITIONAL AND FINAL PROVISIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title IV, Chapter I	AMENDMENTS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title IV, Chapter II	TRANSITIONAL PROVISIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title IV, Chapter III	REPEALS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
Part III, Title IV, Chapter IV	FINAL PROVISIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	